

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MERCED

Limited Civil  
Commissioner David Foster  
Courtroom 9

627 W. 21<sup>st</sup> Street, Merced

Thursday, June 11, 2026  
10:00 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

| Case No. | Title / Description |
|----------|---------------------|
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| 22CV-02836 | TD Bank USA, N.A. vs. Roberto Dominguez Amaro |
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Order Show Cause Re: Dismissal – Notice of Settlement

**Appearance required. This hearing was continued on the Court's own motion from January 28, 2026, and again from March 26, 2026, with notice provided to Plaintiff. The Court notes that on January 5, 2026, Plaintiff filed a request for entry of default and clerk's judgment that was rejected due to a mathematical error. If an amended request for entry of default and clerk's judgment is submitted, the hearing will be vacated and order to show cause discharged.**

**The Court previously noted that on December 20, 2022, Plaintiff filed a Notice of Settlement indicating the parties agreed to a conditional settlement and that a request for dismissal would be filed no later than October 30, 2025. No request for dismissal has been filed.**